

Technical Support (420-1N6-AB) Software Licensing

Fall 2023

Adapted for Fall 2024

What is a Software License?

- An agreement between you and the owner of a software program that allows you to do certain things that would otherwise be an infringement of copyright law.
- Usually answers questions such as:
 - Where and how often can you install the program?
 - Can you copy, modify or redistribute it?
 - Can you look at the underlying source code?
- *Note:* The **price** of the software and any licensing fees are not usually associated with the software license
 - But: the **amount of time** you can use the software for usually is
 - This is relevant for **One-time payment** vs. **subscription payments**

Why do we care?

In Assignment 3, we installed a bunch of software...

```
winget install --id=7zip.7zip -e ;  
winget install --id=cuid.cpu-z -e ;  
winget install --id=Google.Chrome -e ;7  
winget install --id=VideoLAN.VLC -e ;  
winget install --id=Adobe.Acrobat.Reader.32-bit -e ;  
winget install --id=Notepad++.Notepad++-e ;  
winget install --id=Zoom.Zoom -e
```

... were we supposed to pay? can we share it with friends? are there any rules?

Key Points

- What is the End User License Agreement (EULA)
- License term limits
 - Perpetual vs term/subscription license.
- Volume licenses / site licenses for multiple users / teams
 - Secondary or home use rights; for personal use outside of team
- Understand what "free" vs. "open" vs. "proprietary" means in terms of software.

End User License Agreement (EULA)

- Details of what you can and cannot do with software.
 - How many copies you can install?
 - What the software company can do with your data?
 - What additional software the company can install on your computer?
- Written in legal language and often hard to comprehend.
- Use <https://tldrlegal.com/> to look up software licenses in simple English.

Samples of End User Agreements

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Microsoft License Terms



Use the drop down boxes or the search function to locate the license terms for software licensed to you by Microsoft or the computer manufacturer.

If you are a volume licensing customer, please see www.microsoft.com/ for information about your license terms.

How is the software acquired? *

Select

Product Name: OR Search For: [Go](#)

Version:

Language: [Go](#) [Get Acrobat Reader](#)

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Samples of End User Agreements




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[Games](#)
[Help](#)

Updated: 20 September 2017 09:55

MINECRAFT END USER LICENSE AGREEMENT

In order to protect Minecraft (our "Game") and the members of our community, we need these end user license terms to set out some rules for downloading and using our Game. This license is a legal agreement between you and us (Mojang AB) and describes the terms and conditions for using the Game. We don't like reading license documents any more than you do, so we have tried to keep this as short as possible. If you break these rules we may stop you from using our Game. If we think it is necessary, we might even have to ask our lawyers to help out.

If you buy, download, use or play our Game, you are agreeing to stick to the rules of these end user license agreement ("EULA") terms. If you don't want to or can't agree to these rules, then you must not buy, download, use or play our Game. This EULA incorporates the [terms of use for the mojang.com website \("Account Terms"\)](#), our [brand and asset usage guidelines](#), our [privacy policy](#), and, if you live in the United States, our [Arbitration Agreement](#). By agreeing to this EULA you also agree to all of the terms of the foregoing documents, so please read through them carefully.

BINDING ARBITRATION AND CLASS ACTION WAIVER IF YOU LIVE IN THE UNITED STATES

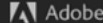
For those that who live in the United States, please [click here](#) to review the binding arbitration agreement and class action waiver that is part of this EULA. Under the agreement, we both agree to use a neutral arbitrator to decide any individual claims that may arise and thus agree to waive our rights to bring individual claims in court for consideration by a judge or jury. We also agree that class action lawsuits and class-wide arbitrations are not allowed under the terms of the agreement.

The complete Arbitration Agreement is on [this page](#). You and we agree to it; please read it.

ONE MAJOR RULE

The one major rule is that you must not distribute anything we've made unless we specifically agree to it. By "distribute anything we've made" what we mean is:

- give copies of our Game to anyone else;
- make commercial use of anything we've made;
- try to make money from anything we've made; or

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End User License Agreement

ADOBE Software License Agreement

PLEASE READ THIS AGREEMENT CAREFULLY. BY COPYING, INSTALLING, OR USING ALL OR ANY PORTION OF THIS SOFTWARE, YOU (HEREINAFTER "CUSTOMER") ACCEPT ALL THE TERMS AND CONDITIONS OF THIS AGREEMENT, INCLUDING, WITHOUT LIMITATION, THE PROVISIONS ON LICENSE RESTRICTIONS IN SECTION 4, LIMITED WARRANTY IN SECTIONS 6 AND 7, LIMITATION OF LIABILITY IN SECTION 8, AND SPECIFIC PROVISIONS AND EXCEPTIONS IN SECTION 16. CUSTOMER AGREES THAT THIS AGREEMENT IS LIKE ANY WRITTEN NEGOTIATED AGREEMENT SIGNED BY CUSTOMER. THIS AGREEMENT IS ENFORCEABLE AGAINST CUSTOMER. IF CUSTOMER DOES NOT AGREE TO THE TERMS OF THIS AGREEMENT, CUSTOMER MAY NOT USE THE SOFTWARE.

Customer may have another written agreement directly with Adobe (e.g., a volume license agreement) that supplements or supersedes all or portions of this agreement. The Software is LICENSED, NOT SOLD, only in accordance with the terms of this agreement. Use of some Adobe and some non-Adobe materials and services included in or accessed through the Software may be subject to additional terms and conditions. Notices about non-Adobe materials are available at <http://www.adobe.com/go/thirdparty>.

The Software may cause Customer's Computer to AUTOMATICALLY CONNECT TO THE INTERNET. The Software may also require activation or registration. Additional information on activation, Internet connectivity, and privacy is available in Sections 14 and 16.

1. Definitions.

1.1 "Adobe" means Adobe Systems Incorporated, a Delaware corporation, 345 Park Avenue, San Jose, California 95110, if this agreement is entered into while Customer is in the United States, Canada, or Mexico; otherwise, it means Adobe Systems Software Ireland Limited, 4-6 Riverwalk, Citywest Business Campus, Dublin 24, Ireland.

1.2 "Adobe Runtime(s)" means Adobe AIR, Adobe Flash Player, Shockwave Player, or Authorware Player.

1.3 "Compatible Computer" means a Computer with the recommended operating system and hardware configuration as stated in the Documentation.

1.4 "Computer" means a virtual or physical device that accepts information in digital or similar form and manipulates it for a specific result based on a sequence of instructions, including without limitation desktop computers, laptops, tablets, mobile

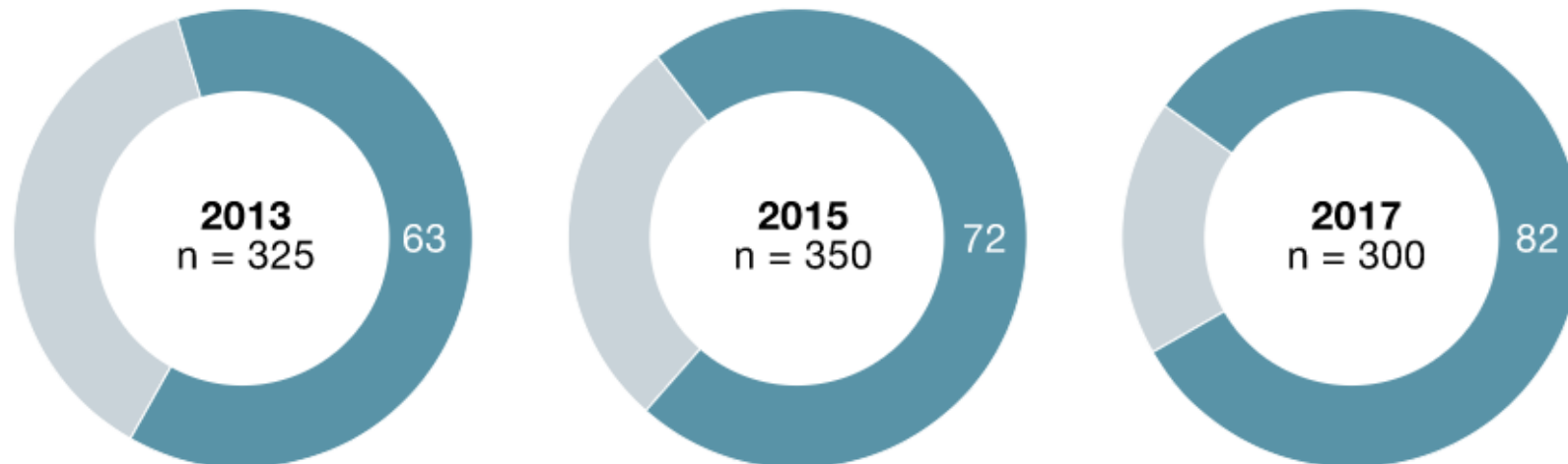
Perpetual / Term (Subscription) License

Sometimes there is a time limit to your software license.

- Perpetual licenses do *not* expire.
- Term licenses expire after a specified period of time.
 - Often one year.
 - Must be renewed periodically.
 - Often called subscriptions.
- Can you think of examples?

Licensing Trends on Management Levels

Share of IT decision makers preferring subscriptions for on-premise software,
% of responses



McKinsey&Company | **Source:** McKinsey survey of large-enterprise IT decision makers

Advantages and Disadvantages of
perpetual / subscription licensing?

Advantages / Disadvantages

Perpetual License	Subscription
Has no expiry date.	Recurring payment (monthly, annually, etc.).
Usually doesn't include support or updates.	Often includes support, updates and upgrades.
May be offset against a tax benefit.	Smaller payments are easier to handle.
Note: Costs vary for each license type. The break-even point is often 3-4 years, where subscription starts to cost more than the purchase of a perpetual license would have cost. Keep in mind that perpetual license might not include version updates of the software while subscription licenses usually does.	

Volume / Site Licenses

- Some software developers offer volume / site licenses.
- These often depend on:
 - Size and type of the organization.
 - Products you want to use (and therefore license).
 - The way in which you want to use these products.

Microsoft Volume Licensing Guide

Microsoft License Advisor

Microsoft License Advisor

Use License Advisor to research Microsoft Volume Licensing products, programs and pricing. Get a full quote that you can share with colleagues or your reseller.

1 Select Country/Region and Language

United States English

2 Select Quote Option

Quick Quote Full Quote Guided Quote

If you just need the price for a single product, start a Quick Quote. Otherwise, select the Full Quote or Guided Quote option.

Select a licensing program **1** Microsoft Open License

Select organization type Corporate

Select a pricing level **1** No Level

Select product Office Professional Plus 2019

Select product type **1** License with Software Assurance

Enter quantity

Get Quote

Notifications

New Products Now Available:

- Windows 10 Enterprise Per Device
- Office 365
- Visual Studio 2019

Retrieve Quote

Enter your unique quote ID

Retrieve

I Need To:

- Contact a partner
- Find a product key

Resources

- Learn more about Volume Licensing
- Review Microsoft Financing options
- View use rights (product versions released prior to July 2015 only)
- Discover the benefits of Software Assurance

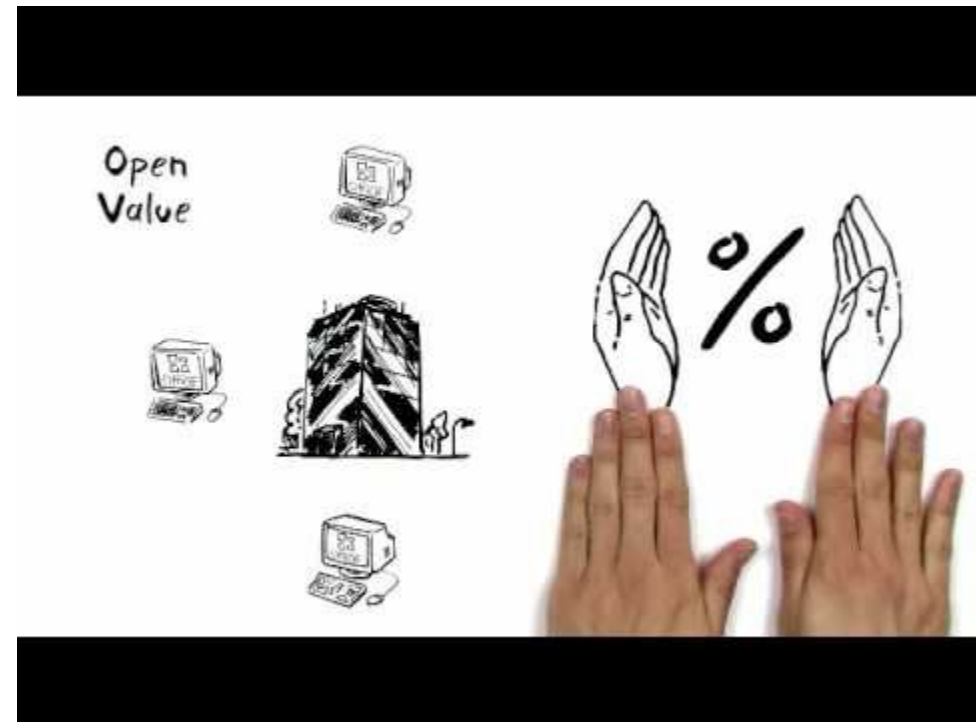
Note: Use the Full Quote or Guided Quote options for pricing products not available in Quick Quote.

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Secondary Use

- **Secondary** use rights allow the user to use software on two devices.
- The secondary device may be:
 - A home PC ('Home-Use Rights') *or*
 - A laptop ('Portable-Use Rights').
 - Some Microsoft applications allow secondary use rights, e.g. Microsoft Office.
- Secondary use rights are also available for some developer tools.
 - For each license acquired, a single person may install copies on any number of computers, as long they are the only person who uses these copies.

License Documentation



KEEP DOCUMENTATION



ALWAYS KEEP A RECORD OF SOFTWARE
PURCHASES, ACTIVATION KEYS, DATE OF
LICENSE, ETC.

License Documentation: Tools

> SEN-4732445	StacksOnDemand JIRA Plugin for AWS for JIRA (Server) 10 Users: Commercial License	BigBrassBand	20 Mar 2017	Request Support
✓ SEN-4625688	Git Integration for JIRA for JIRA (Server) 10 Users: Commercial License	BigBrassBand	02 Mar 2017	Request Support

Name BigBrassBand 

SEN  SEN-4625688

Auto-Renew Off | [Turn Auto-Renew On](#)

Technical Contact   Adam Wride (adam@bigbrassband.com)

Billing Contact   Adam Wride (adam@bigbrassband.com)

Organization BigBrassBand

License Key

AAABXA0ODAoPeNqNkU9rwkAQxe/7KRZ6aQ+G
JForQqAa02LxH2rbS0EmcUynTTZhdIP67buJSj0K
u
zAzC+/93uzdukL5grH02/b0vU6/48lwtZa+63XFrMp
j5PnuXSPrwHPFCHXCVBoqVPBKRo6VwZSh7
uUiq1JSclwfbSvB//F/Qp5j/wgPVc2Sl99GRZ5jpw

Actions [Renew](#) | [Upgrade](#) | [Download](#) | [View Developer License](#) | [Archive](#)

History

02 Mar 2016	Git Integration for JIRA for JIRA (Server) 10 Users: Commercial License
02 Mar 2015	Git Integration Plugin for JIRA for JIRA 10 Users: Starter License

Installation and Activation

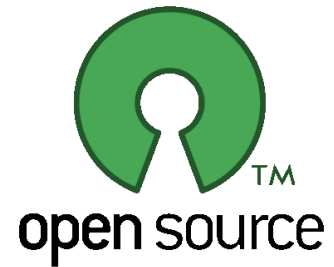
- The process of software installation and activation depends on the product. Here are some key terminologies helpful to undergo the process.
- License Key
 - Usually a long string of letters or numbers entered during the installation process.
 - Ensures that user complies with copyright restrictions and is authorized to use the software.
- Activation
 - The process of entering your license key to enable the full set of features available.
- Deactivation / Transfer
 - When you want to stop using software on one computer and start using it on another, you may need to deactivate the license on old computer before you transfer software to new computer.

Free Software

- Software that respects users' freedom and community.
Freedom to run, copy, distribute, study, change and improve the software.
- A program is “free software” if its users have the four essential freedoms:
 - The freedom to **run** the program as you wish, for any purpose.
 - The freedom to **study** how the program works and change it.
 - The freedom to **redistribute** copies so you can help your neighbor.
 - The freedom to **distribute** copies of your modified versions to others.

Open-Source Software

- In 1998, part of the free software community splintered off and began campaigning in the name of “open-source”.
- Originally proposed to avoid misunderstanding of the word “free” but later become associated with philosophical views different to those of the free software movement. The emphasis was changed from freedom to security, cost savings, transparency and other pragmatic (practical) benefits.
- The OSI's [Open Source Definition](#) is [based directly](#) on the Debian Free Software Guidelines. Software that is considered “free” is almost exactly the same as the actual category of software that is considered “open source”.



Open Source Definition

Open source does not only mean access to the source code.

Distribution terms of open-source software must comply with the following criteria:

- Free Redistribution.
- Source Code.
- Derived Works.
- Integrity of The Author's Source Code.
- No Discrimination Against Persons, Groups, or Fields of Endeavour.
- Distribution of License.
- License Must Not Be Specific to a Product, Restrict Other Software, Technology-Neutral.

Confused?

What is the difference between
free and open-source software?



Open vs Free Software

So Open Source Software Is Free Software?

Yes and no. Software available under the GPL generally qualifies both as free software and open source software. If you use a Linux distribution, most of what you get through your package manager satisfies both sets of requirements.

But I currently use Chrome OS. It, like Android, are open source projects, but they don't satisfy the four freedoms necessary to be considered free software. The growth of these two platforms lend weight to the argument that changes were needed to make free software acceptable within the [corporate world](#). Android is now the most popular mobile operating system and can be found in everything from refrigerators to watches. Yet underpinning all of this is the Linux kernel, a piece of software that satisfies the four freedoms necessary to be considered free software. No other operating system has been ported to more devices.

Open vs Free Software

Is there free software that is not open source?

Probably not. Going by the **Free Software Definition** and the **Open Source Definition**, freedom 0 probably requires OSD criteria 5, 6, 7, 8, 9, and 10; freedom 1 requires OSD criterion 2 (and possibly 7); freedom 2 probably requires OSD criteria 1, 7, 8, and 9; and freedom 3 probably requires OSD criteria 1, 2, 3, 4, 7, 8, and 10.

Is there open source software that is not free?

Going by the definitions, yes, because with the exception of the requirement to provide source code, the **Open Source Definition** concerns itself only with what a license may require. In contrast, as per the **Free Software Definition**, for software to be free it must actually be possible to exercise the four freedoms.

Practically speaking, the vast majority of open source software is also free software. However, the phenomenon of **tivoization** renders some open-source software non-free, at least in practice. When software is designed to run on a particular device, and that device is designed to prevent modified versions from actually working, users are not able to exercise freedom 1.



(5 mins)

GNU General Public License (GPL)

- Widely-used software license given to “free software”.
- Guarantees users the freedom to run, share, copy and modify the software.
- The GPL grants users of a program the rights of the Free Software definition and uses copyleft to ensure that these freedoms are preserved whenever the program is modified, added to and distributed. Software under this license is free and open-source.



A man with long, dark, wavy hair and a full beard is shown from the chest up, speaking. He is wearing a dark red shirt. The background is dark and out of focus. In the top right corner, there is a small, faint logo that looks like a stylized '1' or a similar symbol.

–och 1991 hade vi
nästan alla komponenter.

(4 mins)

Copyright

- Berne Convention for the Protection of Literary and Artistic Works
- International agreement governing copyright.
- First accepted in Berne, Switzerland in 1886.
 - Anything written down is automatically copyrighted.
 - Copyright exists the moment a work is “fixed” rather than requiring registration.
 - Also enforces requirement that countries recognize copyrights held by citizens of all other signatory countries.

Copyleft

- General method for making a program free.
- Requires that all modified and extended versions of the program are also free.
- Background
 - The simplest way to make a program free is to put it in the public domain uncopyrighted. But this means that uncooperative people can get it and turn it into proprietary software.
- Solution
 - By using copyleft, a program is first stated as copyright. Distribution terms are added so everyone has the right to use, modify and redistribute the program's code (or anything derived from it) as long as distribution terms remain unchanged.

Proprietary Software (Licensed)

- Non-free software for which the software's publisher / developer retain intellectual property rights
 - Usually copyright of the source code.
- Vendors typically distribute proprietary software in compiled form.
 - Source code is kept hidden.

Proprietary Software (Licensed) (2)

- Proprietary software may also be limited to a specific set of hardware.
 - Example: Mac OS X is limited to Apple hardware by licensing and also various design decisions.
- Some vendors distribute the source code or otherwise make it available to customers.
 - True for many web applications. (source code must be available when being run by a web server for customization purposes).
 - The source code is covered by a non-disclosure agreement or a license that allows, for example, study and modification, but not redistribution.

Freeware

- Software is free to use.
 - Usual free for use for personal use.
 - Business uses may have to pay a fee.
 - Allows check the terms and condition of use before installing on a business PC.
- Developers do not have to publish source code.
- You can't sell freeware software.

Shareware

- Software is free on trial basis.
 - Try it then buy it.
- Users can have access to the software for a limited time before it expires.
- Not all software features are available or have limited use.

Public Domain Software

- Software that is not copyrighted.
- There is no ownership. Software in the public domain can be modified, distributed or sold without being attributed to anyone.
- Note: A program can be in the public domain, but the source code may not be available. This is not free software, because free software requires accessibility of source code.
- Most free software is not in the public domain; it is copyrighted, and the copyright holders have legally given permission for everyone to use it in freedom, using a free software license.





Q & A

